

Arming the Enemy of My Enemy: The Justification for Proxy Warfare

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"An enemy of my enemy is my friend" has shaped foreign policy for centuries. But in modern warfare, utility has replaced friendship, and utility has been engineered to look like distance. States no longer simply choose proxies over armies instead they choose architecture: layers of intermediaries and transit states designed so that when a weapon is finally used against a civilian, no government's fingerprints remain on the trigger.

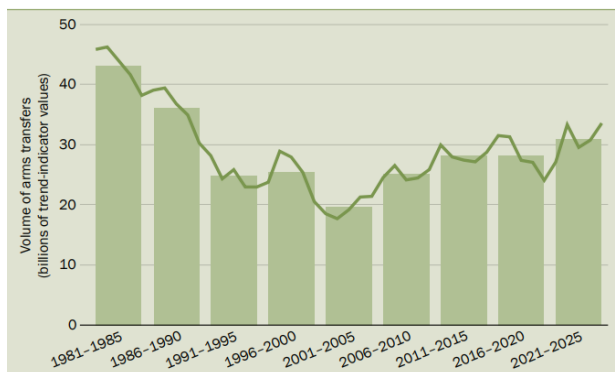


Figure 1. The trend in international transfers of major arms, 1981-2025

This is not one problem but two. The first is direct state sponsorship, a government knowingly arming a non-state actor for its own strategic ends. The second is indirect transfer, the diversion of weapons through brokers, falsified end-user certificates, and complicit transit states until the chain of custody is too tangled to prosecute. DISEC's

agenda treats these as distinct failures, and any serious editorial must too.

Following the Soviet invasion of Afghanistan in 1979, the CIA's Operation Cyclone funnelled over two billion dollars in weapons and training to the mujahideen through Pakistan's ISI, with Saudi Arabia matching Washington's contributions.¹ Among the transfers were roughly two thousand Stinger missiles; a CIA buyback program launched in 1993 at a cost of \$65 million which is nearly double the missiles' original value.² It was later called an "*abysmal failure*" by intelligence officials, since the weapons had scattered too widely to trace. The strategic logic was sound: Washington raised the cost of occupation without deploying its own troops. But the networks built to fight that war did not disband with it, they hardened into the Taliban and sheltered al-Qaeda. Sponsorship does not expire when the sponsor's interest does.

¹ <https://www.guinnessworldrecords.com/world-records/613906-most-expensive-covert-action>

² <https://www.rferl.org/a/1057196.html>

Image source: https://www.sipri.org/sites/default/files/2026-03/fs_2603_at_2025.pdf

If Afghanistan shows what sponsorship does, Libya shows how indirect transfer hides. A 2013 UN Panel of Experts report tracked Libyan weapons reaching fourteen countries in violation of the arms embargo; more recent reporting documents ammunition destined for Sudan's Rapid Support Forces being diverted through Libya and resold to networks linked to ISIS-affiliated gold trafficking in the Niger.³ This is not incidental leakage; it is the predictable result of a system built on self-reported compliance. The Arms Trade Treaty's Article 11 requires states to assess and mitigate diversion risk, yet enforcement still relies heavily on exporters policing themselves, with no binding penalty for failure.⁴

Both failures converge on one unresolved legal question: when does support make a state responsible for what its proxy does? The ICJ's 1986 *Nicaragua* judgment set a demanding "effective control" test, requiring proof a state directed specific unlawful acts, a threshold so high it has shielded most sponsors from liability.⁵ The ICTY's *Tadić* judgment proposed a looser "overall control" standard, satisfied merely by organizing, financing, or equipping a group.⁶ The two have never been reconciled; the ICJ reaffirmed the stricter standard as recently as 2007. That unresolved ambiguity is precisely what sponsors exploit. The plausible deniability is not an accident of proxy warfare, but a loophole international law has left open.

There is a real case for proxy support. The campaign against ISIS relied on the Syrian Democratic Forces, backed by limited, mission-specific U.S. arms and airpower, when the alternatives were direct intervention or letting a caliphate expand.⁷ Proxy support cannot be dismissed as inherently illegitimate, but necessity is not exemption. The SDF's chain of custody was identifiable and its objective narrow. Afghanistan and Libya show what happens once that specificity disappears: necessity becomes a permanent alibi.



³ <https://www.ecoi.net/en/file/local/2139528/n2604139.pdf>

⁴ <https://ihl-databases.icrc.org/en/ihl-treaties/att-2013/article-11?activeTab=>

⁵ https://www.icty.org/x/file/Legal%20Library/jud_supplement/supp6-e/tadic.htm

⁶ <https://modeldiplomat.com/learn/glossary/effective-control-test>

⁷ <https://www.jpost.com/middle-east/article-887251>

Image source: Aaisha (IPP)

Closing this gap requires naming mechanisms, not slogans. ATT diversion assessments need independent verification, not self-certification. UN Panels of Experts, currently renewed conflict-by-conflict, should become standing bodies empowered to trigger automatic sanctions review upon documented diversion. And DISEC should adopt a working rule bridging *Nicaragua* and *Tadić* for arms-transfer cases specifically: a state that arms or knowingly permits transit to a group with a documented record against civilians should face the lower *Tadić* threshold, reserving the stricter standard for disputes over specific operational acts.

Proxy warfare can still win a war without a state losing a soldier. But Afghanistan's scattered Stingers and Libya's decade-long diversion trail prove the costs simply relocate. The question is no longer whether the enemy of my enemy can defeat my enemy, it is whether a system that has spent forty years avoiding a definition of control is finally ready to write one.